DRAFT 001 — base text for legal review. Not legal advice. [Yellow brackets] are placeholders or open points. The Turkish version prevails.

Cleverphotos — Privacy Notice and Face Data Consent

Under Law No. 6698 on the Protection of Personal Data (KVKK) · Version 001 · 19 October 2026

Part A — Privacy Notice

1. Who we are

[Company legal name] ("we"), [address], MERSIS [no], runs Cleverphotos and is the data controller for the data described here. Contact: [kvkk@domain].

2. What we collect

- **Account:** mobile phone number, name (if you give one), your roles (guest / organizer).
- **Face data:** the selfies you upload and the face templates (numeric vectors) we compute from them. This is **biometric data**, a special category under KVKK, and is only processed with your explicit consent (Part B).
- **Event data:** events you join, photos matched to you, downloads and purchases.
- **Organizer data:** billing details, credit purchases, invoices, and the event photos you upload.
- **Technical data:** IP address, device and browser details, access and security logs (e.g. SMS code attempts).
- **Payments:** handled by [payment provider]. We do not store card numbers.

3. Why, and on what legal basis

Purpose	Legal basis (KVKK)
Creating and running your account, sign-in by SMS code	Performance of a contract (Art. 5/2-c)
Finding photos of you in events you join (face matching)	Explicit consent (Art. 6/3-a)
Selling credits and photos, invoicing, accounting	Contract (5/2-c); legal obligation (5/2-ç)
Security, abuse prevention, keeping access logs	Legitimate interest (5/2-f); legal obligation (5/2-ç, e.g. Law No. 5651)
Handling disputes and requests from authorities	Establishing/protecting a right (5/2-e); legal obligation (5/2-ç)

Data is collected electronically through the website and app when you sign up, upload or use the service.

4. Who we share it with

- Hosting and infrastructure providers: Hetzner [Germany/Finland], [AWS, region].
- SMS provider [name] (phone number only, to send codes).
- Payment, e-invoice and accounting service providers.
- The event organizer, who sees that you joined their event. Organizers do **not** see your selfies or face templates.
- Courts and public authorities, when the law requires it.

5. Transfers abroad

Our servers are outside Turkey. Transfers are made under Art. 9 KVKK (as amended by Law No. 7499), using the Board's standard contracts, notified to the Authority within 5 business days of signing. *[Lawyer: confirm mechanism per provider.]*

6. How long we keep it

- **Selfies and face templates:** until you delete them or your account; then erased within [X] days.

- **Event photos and matches:** until the event expires, [X months] after the event date.
- **Account data:** while your account is open; afterwards only what the law requires (e.g. invoice records, up to 10 years).
- **Logs:** [X] years, as required by law.

7. People who appear in event photos

Organizers upload their event photos. To make matching work, the system detects every face in those photos, including people who never sign up, and computes face templates. These are compared only within that one event, only against guests who gave consent, and are never used to identify anyone by name. The organizer is responsible for telling attendees that photos will be shared on Cleverphotos. Anyone may ask us to remove photos or face data about them. *[Lawyer: legal basis and controller/processor roles for these faces are open — see design.md.]*

8. Your rights

Under Art. 11 KVKK you may ask whether we process your data and get information about it; learn the purpose and whether it is used for that purpose; know who it is shared with in Turkey or abroad; have it corrected, deleted or destroyed, and have those changes passed on to recipients; object to a result against you that comes solely from automated analysis; and claim compensation for damage from unlawful processing.

Apply in writing to [address], by KEP to [KEP address], or from your registered phone/email to [kvkk@domain]. We reply within 30 days, free of charge in principle. You may also complain to the Personal Data Protection Board.

Part B — Explicit Consent for Face Data

Cleverphotos can find the photos you appear in. To do this we process your selfies and the face templates computed from them (biometric data) as described in Part A.

- **Purpose:** only to match your face against photos of events you join. Never for advertising, profiling or identifying you elsewhere.
- **Optional:** you can use Cleverphotos without it. You won't get face matching, but, if the organizer allows it, you can still browse all photos of the event.
- **Withdraw any time:** delete your face photos in *My face*, or delete your account. Your templates are erased within [X] days. Withdrawal does not affect processing done before it.

☐ **I have read the Privacy Notice and give my explicit consent** to Cleverphotos processing my face photos and the face templates computed from them, to find photos of me in the events I join.

Shown as a separate, unticked checkbox before the first selfie upload; not bundled with the terms of use. Date, time and text version (001) are recorded with the consent.